

## 20STCV22944 20STCV22944

County: los-angeles

Division: Civil Law and Motion

Department: 529

Hearing date: 2026-07-22

Source URL:

[https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept\\_date=LAM%2C529%2C07%2F22%2F2026](https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C529%2C07%2F22%2F2026)

Source SHA-256: ec1250ca27d514bc9013ff83fa3fdd6bf09c359d5e0b814f9f713f499824080e

Case Number: 20STCV22944 Hearing Date: July 22, 2026 Dept: 529

CULOTTI v. THE CITY OF LOS ANGELES,  
ET AL.

MOTION TO COMPEL INSPECTION

Date of Hearing: 7/22/2026 Trial

Date: 10/12/2026

Department: 45 Case

No.: 20STCV22944

Moving Party: Defendant City of Los Angeles

Responding Party: Plaintiff Elaine Culotti

### BACKGROUND

This is an eminent domain action arising out of a public construction project causing water intrusion, inundation, and land slippage on the real property located at 17520 Revello Drive, Los Angeles, CA 90272 (the "Culotti Property") owned by Plaintiff Elaine Culotti ("Plaintiff"). On June 17, 2020, Plaintiff filed the operative Complaint against Defendants the City of Los Angeles (the "City"); the People of the State of California acting by and through the Department of Transportation, erroneously sued as State of California Department of Transportation ("CDT"); and DOES 1 through 40 (collectively, "Defendants"), asserting causes of action for: (1) Inverse Condemnation; (2) Dangerous Condition of Public Property; (3) Nuisance; and (4) Trespass.

On August 7, 2020, the City and CDT  
filed their separate Answers to the Complaint.

On June 5, 2026, the City filed the  
instant Motion to Compel Inspection. On July 9, 2026, Plaintiff filed an  
Opposition. On July 15, 2026, the City filed a Reply. On July 16, 2026,  
Plaintiff filed a Sur-Reply.

\*\*\*DELETE FROM TENTATIVE\*\*\*YOUR HONOR, the  
reply brief actually was not successfully filed by the City and uploaded on  
eCourt. I received it from your court staff who reached out to the City's  
counsel for a courtesy copy. \*\*\*DELETE FROM TENTATIVE\*\*\*

[Tentative] Ruling

Defendant City of Los Angeles' Motion  
to Compel Inspection is DENIED.

LEGAL  
STANDARD

A party may demand that any other party  
produce and permit the party making the demand, or someone acting on the  
demanding party's behalf, to inspect and to photograph, test, or sample "any  
tangible things that are in the possession, custody, or control of the party on  
whom the demand is made" and "electronically stored information in the  
possession, custody, or control of the party on whom demand is made." (Code  
Civ. Proc., § 2031.010, subds. (c), (e).)

A party who receives a demand for  
production, i.e., a demand for inspection, copying, testing, etc. must respond  
separately to each individual item requested with either a statement indicating  
compliance, a statement that the party lacks the ability to comply, or an  
objection. (Code Civ. Proc., § 2031.210, subd. (a).)

A party may then move for a further  
response to requests for production of documents where an answer to the  
requests are evasive or incomplete or where an objection is without merit or  
too general. (Code Civ. Proc., § 2031.310, subd. (a).)

Notice of the motion must be given within 45 days of service of the verified response, otherwise, the propounding party waives any right to compel a further response. (Code Civ. Proc., § 2031.310, subd. (c).)

Finally, California Rules of Court, Rule 3.1345 requires that all motions or responses involving further discovery contain a separate statement with the text of each request, the response, and a statement of factual and legal reasons for compelling further responses. (Cal. Rules Ct., Rule 3.1345, subd. (a)(3).) ٧٧

#### PRELIMINARY MATTERS

As a preliminary matter, the Court notes that Plaintiff filed a sur-reply in response to the City's reply brief on the grounds that it contains new evidence. (Plf. Sur-Reply at 2:1-10.) "It is true, of course, that '[t]he general rule of motion practice...is that new evidence is not permitted with reply papers.'" (Golden Door Properties, LLC v. Superior Court (2020) 53 Cal.App.5th 733, 774.) "However, a recognized exception is for points 'strictly responsive' to arguments made for the first time in the opposition." (Id.) The moving papers and opposition both raise arguments regarding whether there is good cause to have Plaintiff's devices forensically searched. (Mot. at 2:9-14; Opp. at pp. 6-7.) The declaration filed in support of the reply brief cites to Plaintiff's production of the Assignment Agreement and is offered to support the City's assertion that forensic examination is warranted, thus it is responsive to the arguments made in the opposition. Nevertheless, Plaintiff does not object to Exhibits F and G, which were submitted on reply.

#### ANALYSIS

Here, the City moves for an order compelling Plaintiff to permit the inspection of her cloud-based email servers and technological devices including desktop computers, laptops, email accounts, mobile telephones, and associated storage media on the grounds that the native electronic version of the Assignment Agreement and all related communications are relevant to the parties' claims and defenses. Specifically, the City contends that Plaintiff's standing to sue is at issue in this case, thus the Assignment Agreement

is the cornerstone of determining whether Plaintiff has any cognizable interest in the claims raised in the Complaint. Furthermore, the City asserts that based on Plaintiff's deposition testimony the authenticity and provenance of the Assignment Agreement is also at issue.

As an initial matter, the Court notes that Plaintiff does not dispute the relevance of the Assignment Agreement. However, Plaintiff contends that the motion should be denied because she has already agreed to produce the Assignment Agreement in its native electronic format with all associated metadata in response to the City's concurrently served Requests for Production of Documents (Set Six). (Ho Decl., ¶4.) On the other hand, the City argues that Plaintiff's offer to produce the native file of the Assignment Agreement does not moot the present motion because only an independent forensic examination can verify the authenticity of the Assignment Agreement. (Reply at 5:6-12.)

In support of its contention, the City cites to *Ellis v. Toshiba America Information Systems, Inc.* (2013) 218 Cal.App.4th 853, which held that a court's inspection orders of electronically stored information were reasonable and necessary. (*Ellis v. Toshiba America Information Systems, Inc.* (2013) 218 Cal.App.4th 853, 881.) This instant case is distinguishable from *Ellis*, wherein the attorney was seeking a large fee request and had deleted all original electronic billing records, which called into question the authenticity and/or accuracy of her billing records. (*Id.*) Similarly, in *Electronic Funds Solutions, LLC v. Murphy* (2005) 134 Cal.App.4th 1161, the defendants had violated an order of inspection and stipulated order by producing electronic hard drives, which had been "wiped" by the "Data Eraser" software. (*Electronic Funds Solutions, LLC v. Murphy* (2005) 134 Cal.App.4th 1161, 1170.) There is no indication that Plaintiff in this instant case has deleted the original electronic version of the Assignment Agreement and/or its associated metadata. In fact, Plaintiff's counsel avers that none of the metadata of the native electronic file of the Assignment Agreement produced on July 14, 2026 was stripped, removed, modified or altered in any way before it was produced. (Ho. Suppl. Decl., ¶4, Ex. F.) The City has also stated that it was willing to avoid motion practice upon stipulation that the document produced on July 14, 2026 is the earliest version of the Assignment Agreement at issue. (*Id.*, ¶5, Ex. A; *Sozio Reply Decl.*, ¶6.) Plaintiff, by and through her counsel of record has done so. (Ho. Suppl. Decl., ¶4.)

Accordingly, the City fails to demonstrate that good cause exists to compel inspection of the Assignment Agreement by a forensic examiner at this time.

#### CONCLUSION

Based on the foregoing, Defendant City of Los Angeles' Motion to Compel Inspection is DENIED.